

Court No. - 39

Case :- WRIT - C No. - 23748 of 2024

Petitioner :- Harish Agrawal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Abhilasha Singh,Ashutosh Yadav,Jay
Prakash Singh,Shyam Lal

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Saumitra Dayal Singh,J.

Hon'ble Donadi Ramesh,J.

1. Shri Ashutosh Yadav, learned counsel for the petitioner appears and claims subsequent engagement. Shri Jay Prakash Singh, learned counsel who has instituted the present writ petition says his Vakalatnama has yet not been withdrawn.

2. Accordingly, put up this case as fresh on 22.08.2024, showing the name of Shri Ashwni Kumar Mishra as learned counsel for the respondent.

3. Petitioner shall remained present in the Court on next date fixed.

Order Date :- 25.7.2024

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(Donadi Ramesh,J.) (S.D. Singh,J.)

Court No. - 40

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Abhilasha Singh, Ashutosh Yadav, Jay Prakash Singh, Shyam Lal

Counsel for Respondent :- Alok Mishra, Ashwani Kumar Mishra, C.S.C.

Hon'ble Shekhar B. Saraf, J.

Hon'ble Manjive Shukla, J.

1. Heard learned counsel appearing for the petitioner, learned Standing Counsel appearing for Respondent No.1 and Sri Alok Mishra, learned counsel appearing for Respondents No.2 and 3.

2. This is a writ petition under Article 226 of the Constitution of India wherein the writ petitioner is aggrieved by the re-connection of electric connection to his son, that had been temporarily disconnected with respect to a portion of the premises wherein his son runs a restaurant.

3. The factual matrix is as follows:-

(a) The petitioner and his son are engaged in a partition suit which is pending and in which there is no specific injunction order against the son of the petitioner.

(b) The petitioner's son (respondent no.4) approached the Electricity Department for grant of electric connection as he is in possession of a portion of the property where he is running a restaurant.

(c) The Electricity Department granted electric connection to the son of the petitioner and his son continued to run his restaurant.

(d) Subsequently, on a complaint filed by the petitioner the electric connection was disconnected on the ground that the son of the petitioner had not taken permission from the petitioner.

(e) The son of the petitioner, thereafter filed a indemnity bond with the Electricity Department and upon such bond being furnished, the electricity connection was restored to him.

4. Learned counsel appearing on behalf of the petitioner submits that as per Regulation 4.39 of the Uttar Pradesh Electricity Supply Code, 2005, in case of temporary dis-connection, supply shall be re-connected only after the cause of dis-connection has been removed. He submits that since the permission of the petitioner was not taken, the cause of temporary dis-connection was not ever

removed and therefore, the Electricity Department could not have restored the electricity connection to the respondent no.4.

5. Per contra, learned counsel appearing on behalf of the respondents submits that as per Annexure 4.2 of the Uttar Pradesh Electricity Supply Code, 2005, an indemnity bond can be furnished from an occupier of a premises and based on the same, electric connection can be granted to him.

6. Upon analysis of the submissions made on behalf the parties, it is to be noted that Regulation 4.39(b) of the Uttar Pradesh Electricity Supply Code, 2005 deals with the procedure for re-connection which says that supply shall be reconnected after the cause of disconnection has been removed. This particular provision is made for the benefit of a person whose supply has been dis-connected. This provision does not act as a bar on the Electricity Department to provide re-connection by using any other mechanism if the Electricity Department is protected in relation to the payment of the bills.

7. We are of the view that Regulation 4.39(b) of the Uttar Pradesh Electricity Supply Code, 2005 is not a clause restricting the Electricity Department but only is an enabling clause for the benefit of a person whose connection has been terminated temporarily by the Department.

8. In light of the same, if the Department has accepted the indemnity bond from the respondent no.4 and thereafter restored the electric connection to him, we do not find any illegality having been carried out by the Electricity Department. There does not appear to be any impediment in granting electric connection in case of a person who is occupying a particular premises by taking indemnity bond as per Annexure 4.2 of the Uttar Pradesh Electricity Supply Code, 2006.

9. In light of the same, we do not find any merit in this writ petition. The writ petition is accordingly dismissed.

Order Date :- 22.8.2024

Salim

(Manjive Shukla, J.)

(Shekhar B. Saraf, J.)